EXHIBIT D

UNITED STATES DISTRICT COURT

FOR THE SOUTHERN DISTRICT OF CALIFORNIA

UNITED STATES OF AMERICA, Plaintiff, v. ROBERTO A. SANDOVAL, Defendant.	Case No. 16-CR-01694-JLS Friday, February 7, 2025 Faretta Hearing

CERTIFIED TRANSCRIPT

BEFORE THE HONORABLE JANIS L. SAMMARTINO

UNITED STATES DISTRICT JUDGE

REPORTER'S TRANSCRIPT OF PROCEEDINGS

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(Reported stenographically; transcribed via computer)

FRIDAY, FEBRUARY 7, 2025; 1:36 P.M.

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THE CLERK: Matter number 12, 16-CR-1694, United States of America v. Roberto Antonio Sandoval for status hearing.

MS. GRIFFITH: Good afternoon, your Honor. Amanda Griffith appearing on behalf of the United States.

MR. TAMAYO: Good afternoon, your Honor. Hector Tamayo specially appearing for Jose Badillo on behalf of Mr. Sandoval.

THE COURT: Okay. Mr. Sandoval, good afternoon.

THE DEFENDANT: Good afternoon.

THE COURT: I understand you want to represent yourself in this matter?

THE DEFENDANT: Yes, your Honor.

THE COURT: Okay. Did you ever meet Mr. Badillo?

THE DEFENDANT: Over the phone, yes.

THE COURT: Okay. And did he talk to you about this matter?

THE DEFENDANT: About appearing pro se or about my case?

THE COURT: Did he talk to you about the matter

that's before the Court, which is the supervised release violation that I thought was resolved at one point but, apparently, there's still some outstanding issues?

THE DEFENDANT: No. He was looking -- he was basically reviewing the case and -- but before he got back to me regarding that, I decided that I wanted to just go pro se.

THE COURT: Okay. Well, let me ask you this: Have you ever studied law, sir?

THE DEFENDANT: I have a paralegal certificate.

THE COURT: In what area?

THE DEFENDANT: It's general.

THE COURT: Okay. When did you get that, sir?

THE DEFENDANT: 2017 when I was in pretrial.

THE COURT: Okay. And let's move that mic a little bit closer to him if you would, Counsel.

And let me ask you this: Where did you get that paralegal certificate from?

THE DEFENDANT: USD.

THE COURT: Okay. And did you ever practice as a paralegal?

THE DEFENDANT: No. I was offered a job while I was on supervised release, but I was denied the opportunity by my probation officer.

THE COURT: Okay. Have you ever represented

yourself before in a criminal matter, sir?

THE DEFENDANT: No, I have not, your Honor.

THE COURT: Okay. Do you understand that if you represent yourself, you're on your own; this Court, and in particular the Court of Appeal, will not advise you as to how to handle things procedurally, substantively, or in any other way.

THE DEFENDANT: My understanding is that I can make a request for stand-by counsel.

THE COURT: I'm not sure if you can or you can't on that, sir. I mean, I don't appoint stand-by counsel for appeals, but does either counsel have any experience with stand-by counsel on appeals?

MS. GRIFFITH: Your Honor, I'm not familiar with the practice of being able to appoint stand-by counsel outside of a trial setting, as that right is predicated on the trial rights of an individual. There is no pending current motion hearing.

THE COURT: Right.

MS. GRIFFITH: The judgment of conviction was issued 13 days ago. So if the defendant is choosing to go pro se now and looking to his rights to appeal, he can certainly appeal *in forma pauperis* and see if the Court will change that, or he can seek counsel that way. But he's not entitled to hybrid or stand-by counsel at

this particular stage.

THE COURT: Are you familiar with the rules of criminal procedure?

THE DEFENDANT: It's not something I've studied and know thoroughly. However, I mean, I know other defendants have defended themselves pro se, and they basically --

THE COURT: You know that other defendants have?

THE DEFENDANT: And I know they learn as they go along. And, you know, I will be respectful to the rules of the Court and whatever . . . .

THE COURT: Well, you need to know what the rules of the Court are. So my next question is do you know the rules of appellate practice and appellate procedure?

THE DEFENDANT: It's something that I can research, yes. But I didn't -- I haven't -- I don't have no experience with it, but . . . .

THE COURT: Do you understand that those rules govern the way that this Court and the appellate court will proceed with this matter?

THE DEFENDANT: Yes, your Honor.

THE COURT: Okay. And you understand there can be consequences? There's very little doubt in the

Court's mind that a trained lawyer would handle this matter far better than you could. And I could state it much more strongly, but I'm going to state it as politely as I can: I think it extremely unwise to represent yourself. You're not familiar with the law. You're not familiar with court procedures. You're not familiar with appellate practice. And you're not familiar with -- I think I already said appellate procedure, and I urge you not to try to represent yourself.

Now, it's hard for me to say what the consequences of self-representation could be, because this is an unusual posture. It's going forward. There's nothing pending -- as counsel said, there's nothing pending before me. This was a closed matter that you now wish to appeal. So I don't know what the posture would be coming back or what the issues would be, but I guess I'll ask this question: In light of the difficulties in representing yourself and your request to represent yourself, do you still think that this is what you want to do and give up your right to be represented by counsel?

THE DEFENDANT: Yes, your Honor.

THE COURT: Is your decision voluntary?

THE DEFENDANT: Yes, your Honor.

THE COURT: Any other questions either counsel want to ask?

Ms. Griffith?

MS. GRIFFITH: Your Honor, I would note that the defendant wasn't placed under oath. But as the Court is appearing to grant him pro se status, or trusting that he is being honest and truthful in his representations, such that any later complaints that this hearing was not conducted while he was under oath, is a procedural error.

In terms of the immediate consequences, because the defendant got the benefit of not being revoked and sent into custody, he runs the risk of waiving critical times that are deadlines that are imminently approaching in light of this. So he might run the risk, with lack of counsel, of a complete waiver of his right to either appeal or to otherwise challenge or seek this Court's reconsideration. So those would be the immediate consequences because the defendant isn't in any custodial danger at this point in time since there is no active pending petition --

THE COURT: Right.

MS. GRIFFITH: -- seeking to deprive him of his liberty.

THE COURT: Mr. Sandoval, Ms. Griffith brings

up an important point. The Court did not place you under oath. In answering those questions, have you been truthful with the Court today?

THE DEFENDANT: Yes, your Honor.

THE COURT: And you are voluntarily requesting that you get to represent yourself on this matter?

THE DEFENDANT: Yes, your Honor.

THE COURT: Do you understand her point that critical timelines are rapidly running on this matter?

THE DEFENDANT: Your Honor, I understand that today is supposed to be my deadline to submit a notice of appeal, and I did want to request if that could be extended until Monday considering this was, you know, very last-minute.

THE COURT: I can't do that, sir. I don't have the authority to do that. That's why I appointed counsel for you and had a special hearing earlier this week so that you wouldn't be in this predicament, sir. That's why I appointed Mr. Badillo. And I forget what day it was -- Tuesday, I believe, or Wednesday? What day did I do it?

THE CLERK: Tuesday.

THE COURT: Tuesday I had Mr. Badillo here. You had the incorrect time. He talked to you on the phone. We waived your presence. I appointed him. He

said he could accept your appointment, and I did that especially because today was a critical date. And I don't have the authority to extend that.

So let me ask you, do you still wish to represent yourself?

THE DEFENDANT: Yes, your Honor. Can I explain why I decided to make this decision?

THE COURT: It doesn't really much matter to the Court, sir. I've told you: You're not trained. You're not educated in the law. You don't have the experience of representing yourself. You've had able counsel appointed for you, and you're choosing not to go forward with that attorney, or any attorney at this point, and apparently you've gotten some advice to the contrary.

THE DEFENDANT: No, your Honor. This was a decision I made on my own, and it has to do with advice I was given at my probation revocation hearing that I feel had a detrimental impact -- especially, if I'm going to appeal will have an even more detrimental impact.

In particular I wanted to present a document as evidence responding to the probation officer's complaint, and I was strongly discouraged from doing that, you know, telling me there would be negative

effects. And so as a result I don't have that document in the record. And so I wanted to at least ask if I could get that document in the record today so that it is in the record at the district level.

THE COURT: But it hasn't been before the Court in any of its proceedings, sir. It was nothing that I considered. Basically, your matter came forward in the agreed-upon posture. I continued it a week for you to continue to think and determine what you wanted to do, but basically it came forward and you admitted the allegations and received what I would have to characterize as a very favorable disposition of your matter because of that agreement and admission and acknowledgment that you would avail yourself of the resources and programs that were being presented and set forth for your period of supervision.

So that was nothing the Court ever considered, so I can't put something in the record that wasn't before me, sir. And there's really nothing before me today except this request for an attorney. I can't extend the deadline for appeal. I can't do anything with it because I don't have the authority to extend an appellate deadline.

So I get back to the question: Do you continue to wish to represent yourself in this proceeding?

THE DEFENDANT: Based on past experience with attorneys, your Honor, giving me advice that I feel has been detrimental to me and not -- not being receptive to my ideas, and essentially convincing me not to do things because they are telling me that there are going to be negative consequences, and I feel like that advice gave me -- I mean, was detrimental, I've decided that I think I would actually do better if I represent myself.

I mean, I understand I don't understand a lot of the rules and procedures, but my understanding is that when a person is appearing pro se there's some leniency as far as, you know, giving the person some leeway as far as not being a professional attorney.

THE COURT: Well, let me say this --

MR. TAMAYO: Your Honor, if I may.

THE COURT: Certainly.

MR. TAMAYO: Can you give me a moment to maybe counsel Mr. Sandoval?

THE COURT: Okay. Let me just say one thing: I don't help either side. I don't help Ms. Griffith with her side of the case, and I don't help you with your side of the case, whether or not you have a lawyer by your side or are there by yourself. The rules are the same, no matter represented by counsel or not. The law is not written so that if you're self-representing

you get a break, and if you're not self-representing, you don't. So I don't know if I would characterize it exactly the way you -- you are characterizing it, sir.

So I'm going to take a moment and let counsel talk to you.

Go ahead, Counsel.

MR. TAMAYO: Thank you, your Honor.

THE COURT: Do you want me to call this back?

MR. TAMAYO: Yeah, can you recall it?

THE COURT: Sure. Sure.

MR. TAMAYO: Thank you very much.

THE COURT: I'm sorry. Stay with us a little longer.

MS. GRIFFITH: Not a problem, your Honor.

THE COURT: Thank you.

(Pause in proceedings.)

THE CLERK: Recalling matter number 12, 16-CR-1694, United States of America v. Roberto Antonio Sandoval for status hearing.

MS. GRIFFITH: Good afternoon again, your Honor. Amanda Griffith.

MR. TAMAYO: Good afternoon again, your Honor. Hector Tamayo specially appearing for Jose Badillo on behalf of Mr. Sandoval.

THE COURT: Okay. You've had a moment to

confer. Who wants to go first? Anything resolved out there or no?

MR. TAMAYO: No, your Honor. It's my understanding that Mr. Sandoval is -- he's dead set on being pro se in this matter. And he understands that the deadlines are today. He understands the potential consequences. I've used my 19 years of experience to try to tell him otherwise.

THE COURT: No, I know you did. I know you did.

Anything you want to add?

MS. GRIFFITH: The only thing I would add, your Honor, is that I think it needs to be made clear in open court with Mr. Sandoval's complete understanding that his status now as a pro se representative -- or that he's representing himself on matters in the court does not give him a license to ignore or disregard the conditions of his supervised release.

He doesn't get to seek his own counsel and advise against complying. The procedural process of this case is the revocation. The judgment supporting the revocation was entered following his admission, and he is on supervised release. I am worried that Mr. Sandoval is going to over-inflate his pro se status to object to complying with the conditions of his

supervised release, and I just need the Court to advise him that under -- any other defendant, whether he's pro se or not, would still be expected to comply with the Court's orders as conditions of supervised release.

MR. TAMAYO: Your Honor, perhaps in an abundance of caution we should maybe redo the *Faretta* and have Mr. Sandoval put under oath.

THE COURT: Okay. Mr. Sandoval, would you raise your right hand and be sworn by my clerk.

(Defendant sworn.)

THE COURT: Okay. We're going to go back over some questions I've asked you previously, Mr. Sandoval. The first one being, have you ever studied law?

THE DEFENDANT: I have only studied paralegal studies.

THE COURT: I'm sorry?

THE DEFENDANT: Paralegal studies.

THE COURT: Okay. And was there an area of focus in those paralegal studies? Was it criminal? Was it civil? Was it immigration?

THE DEFENDANT: It was general, your Honor.

THE COURT: It was general.

THE DEFENDANT: Yes.

THE COURT: Have you ever represented yourself in a criminal case in either the state or federal

courts?

THE DEFENDANT: No, your Honor.

THE COURT: Okay. Do you understand the nature of these proceedings?

THE DEFENDANT: Yes, your Honor.

THE COURT: You understand you were brought in on a supervised release violation?

THE DEFENDANT: Yes, your Honor.

THE COURT: And do you understand that the Court has taken action on that supervised release violation and placed you on conditions of supervision and a term of supervision?

Do you understand that?

THE DEFENDANT: Yes, your Honor.

THE COURT: And that those are in full force and effect as of today and going forward?

THE DEFENDANT: Yes, your Honor.

THE COURT: Okay. Do you understand that if you represent, you're on your own?

THE DEFENDANT: Yes, your Honor.

THE COURT: I do not help either side, the defense side or the government side. With or without lawyers, the rules are the same. Stated another way, the playing field is level.

THE DEFENDANT: I understand, your Honor.

THE COURT: I can't give advice. You can't say to the Court, "What should I do? How do I do this?" It's not my role. I'm like a referee in these proceedings.

Are you familiar with the rules of appellate procedure?

THE DEFENDANT: No, your Honor.

THE COURT: Do you understand that those rules govern and that you're bound by those rules and they cannot be relaxed for your benefit?

THE DEFENDANT: Yes, your Honor. I understand.

THE COURT: When you were here a few moments ago you asked me if I would extend the deadline for you to file your appeal. And I do not have that authority, sir. And as I indicated then and I'll indicate now, that's why I set your case on Tuesday to give somebody Wednesday, Thursday, and Friday to file something on your behalf before the appellate period ran.

Do you understand that?

THE DEFENDANT: Yes. And can I explain why that didn't happen?

THE COURT: Why what didn't happen?

MR. TAMAYO: It's not relevant at this --

THE DEFENDANT: Well, just because I want it on the record. Like I had told you, I understand you said

you could not accept anything new on record, but I wanted to see if I could get this on record before the notice of appeal.

THE COURT: You want -- as I understand it, you weren't happy with the lawyer who told you that you couldn't submit a document into the record; that it wasn't going to accomplish anything?

THE DEFENDANT: Or even read it, yes, even though I feel it's very factual and truthful and mitigating and exculpatory.

THE COURT: Okay. Nonetheless, you came into this courtroom and under oath admitted the allegations.

THE DEFENDANT: One, your Honor. One allegation of the two.

THE COURT: One allegation, yes. And having done that, this Court imposed supervision and extended the term of supervision and set the conditions. And it's because of that document that was not submitted to the Court, I guess, that we're here today. And you've asked me to accept that document into the record. But, sir, it has never been part of the record. It was not part of my consideration and cannot be at this juncture because there's really nothing before me today.

What I did, setting the term of supervision and the conditions of supervision, took place a couple of

weeks ago. And I've only seen you to get counsel appointed and then today because you apparently don't want the counsel that was appointed for you.

I've also already indicated to you but will do it again that in my opinion -- and I've been doing this a lot of years, a lot of years, Mr. Sandoval -- a trained lawyer would do a much better job than you're able to do. I think it's extremely unwise, and I'm trying to put this as politely as I can. For you to represent yourself, it's foolhardy. It's foolish. You're not familiar with the law. You're not familiar with court procedures. You're not familiar with appellate procedures. And so I urge you not to represent yourself. You don't know the appellate processes of the Ninth Circuit.

So in light of everything I've told you and the difficulties of self-representation, I'll ask you again Mr. Sandoval: Do you still desire to represent yourself and give up your right to be represented by counsel?

THE DEFENDANT: Yes, your Honor.

THE COURT: Is this decision totally voluntary?

THE DEFENDANT: Yes, your Honor.

THE COURT: Okay. I'll make the findings that you have knowingly and voluntarily waived your right to counsel. And I think that concludes this matter.

MS. GRIFFITH: I have nothing further.

THE COURT: The conditions of supervision have been set. The term of supervision has been set. And you must comply with those, Mr. Sandoval.

I want to thank you, Mr. Tamayo, for coming and standing in on this matter today.

Mr. Badillo is relieved as your counsel. And anything else that we need to cover here?

MS. GRIFFITH: No, your Honor.

MR. TAMAYO: No, your Honor.

THE COURT: Okay. Thank you, Mr. Sandoval.

THE DEFENDANT: Thank you, your Honor.

(Proceedings concluded at 2:16 p.m.)

C E R T I F I C A T E

I, Stephanie Whitehead, certify that I am a duly qualified and acting Official Court Reporter for the United States District Court; that the foregoing is a true and accurate transcript of the proceedings as taken by me in the above-entitled matter on February 7, 2025; and that the format used complies with the rules and requirements of the United States Judicial Conference.

Dated: April 2, 2025

s/ STEPHANIE WHITEHEAD

Stephanie Whitehead, CSR 10093
U.S. Official Court Reporter